

Tamil Nadu Maritime Board (Procedure For Meeting of The Board and Its Committee) Regulations, 1997

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[G. O. Ms. No. 76, Transport, dated the 18.3.1997 - SRO A-25\(b\)/97. - In exercise of the powers conferred by section 115 read with clause \(a\) of sub-section \(1\) of section 110 of the Tamil Nadu Maritime Board Act, 1995 \(Tamil Nadu Act 4 of 1996](#)

[\), the Governor of Tamil Nadu hereby makes the following Regulations:](#)

[Chapter I](#)

Preliminary

1.

Short title.

- These regulations may be called the Tamil Nadu Maritime Board (Procedure for Meeting of the Board and its Committee) Regulations 1997.

2.

Definitions.

(1)

In these regulations unless the context otherwise requires,-

(a)

"Act" means the Tamil Nadu Maritime Board Act, 1995 (Tamil Nadu Act 4 of 1996

);

(b)

"clear days" means excluding both the date on which the notice is served and the date of the meeting;

(c)

"resolution" means a proposal made to evoke action on the part of the Board and it includes an amendment to any regulation;

(d)

"section" means a section of the Act.

(2)

The words and expressions used, but not defined in these regulations shall have the meaning assigned to them in the Act.

Chapter II

Meetings Of The Board

3.

Minimum number, date, time and place of meeting.

(1)

The Board shall meet at least once in a month.

(2)

The Board shall meet on such date, time and at such place as may be fixed by the Chairman.

4.

Special Meeting.

- The Chairman shall, if he thinks fit on receipt of the written requisition from the majority of the members of the Board, call a special meeting and fix the date, time and place for such meeting.

5.

Notice of meeting.

(1)

The Chief Executive Officer shall give not less than ten clear days notice of every meeting and in the case of a special meeting not less than five clear days notice in writing to all the members at their usual address stating the date, time and place of such meeting and the business to be transacted at such meeting:

Provided that the period of notice may be waived if the date, time and place of such meeting has already been fixed at the previous meeting or if the Chairman considers it necessary to hold a meeting for the transaction of any emergent business:

Provided further that the date, time and place of the adjourned meeting shall be announced at the meeting before it is adjourned and no separate notice shall be necessary.

(2)

The accidental omission to give notice to, or the non-receipt of notice by, any member to whom it should be given shall not invalidate the proceeding of the meeting.

6.

Mode of delivery of notice.

- Every notice of meeting shall be sent to the members to their usual address by hand delivery or by ordinary post under certificate of posting.

7.

Agenda of the meeting.

(1)

A copy of the agenda with explanatory notes, if any, shall be circulated to all members of the Board before the date fixed for the meeting except where a meeting has been called by the Chairman for the transactions of emergent business.

(2)

Notwithstanding anything contained in clause (1), any matter not included in the agenda may, with the approval of the Chairman, be placed before the Board at such meeting and the Board may consider such matter.

(3)

Any member desiring to ask any information relating to any of the items of the agenda of the meeting or any other point concerning the affairs of the Board shall give prior notice to enable the Chief Executive Officer to collect necessary information.

8.

Quorum.

- The quorum necessary for the transaction of the business at a meeting of the Board shall be one half of the total number of the members of the Board.

9.

Adjournment of meeting.

(1)

If within thirty minutes from the time appointed for a meeting, there be no quorum the meeting shall, if called upon, the requisition of members be dissolved and in any other case unless all the members present agree to wait longer, the Chairman shall adjourn the meeting to such date and at such time and place as he may reasonably fix.

(2)

If at any time during the course of a meeting, the number of members present falls short of the required quorum the Chairman shall, after waiting for a period of not less than thirty minutes adjourn the meeting to some other day fixing the time and place as he thinks convenient.

(3)

A meeting may also, with the consent of the majority of the members, present, be adjourned, from time to time.

(4)

The business which would have been brought before the original meeting had there been quorum thereat or had not been adjourned by the consent of the members shall be brought before the adjourned meeting and may be disposed of at such meeting or at any subsequent adjournment thereof:

Provided that no business shall be transacted at any adjourned meeting other than that left undisposed of at the previous meeting.

10.

Order of business at a meeting.

- The agenda of business to be transacted at a meeting of the Board shall generally be in the following order, namely: -

(i)

confirmation of the minutes of the previous meeting;

(ii)

reports of action taken on the decision at the previous meeting;

(iii)

matters relating to urgent official business brought forward by the Chairman;

(iv)

any resolution regarding change of agenda;

(v)

resolutions;

(vi)

statement of receipts and expenditure;

(vii)

progress report;

(viii)

items such as Budget Plans Programmes and Audit Reports;

(ix)

any matter which the State Government or any other officer authorised by the State Government in this behalf may require the Board to consider;

(x)

any other matter which may be brought up at the meeting with the permission of the Chairman.

11.

Conduct of Member during meeting.

(1)

A member who desires to make any observation on any matter before the meeting shall, if called upon by the Chairman, address his remark to the Chairman.

(2)

A member shall confine his speech strictly to the question before the meeting and shall cease to make remarks which are held by the Chairman to be irrelevant or offensive.

12.

Moving of resolution.

(1)

A member who wishes to move any resolution shall send a notice of Such resolution together with a brief covering note setting out therein the reasons in support of such resolution to the Chief Executive Officer at least ten days in advance of the meeting so as to enable the Chief Executive Officer to include the resolution in the agenda:

Provided that the Chairman may, at his discretion, allow such resolution to be moved in a meeting though the notice of the resolution is not received in time for inclusion in the agenda.

(2)

Any resolution on which the decision of the Board is urgently required may be circulated to the members and, if it is approved by the majority of the members of the Board, it shall be deemed to have passed as a resolution at a meeting of the Board duly convened. Such decision shall be placed before the next meeting of the Board for ratification.

13.

Resolution to be voted on conclusion of debate.

(1)

The Chairman may on the conclusion of a debate on a resolution or at any time when the Chairman is satisfied that the resolution has been sufficiently discussed, put the same to the vote of the meeting. Against every resolution passed at a meeting, a remark shall be made in the minutes of the meeting as "passed by majority" or as "passed unanimously", as the case may be.

(2)

(i)

When there are one or more amendment to a resolution, the Chairman shall first put to vote the amendment or amendments one by one.

(ii)

If all amendments are lost, the Chairman shall put the resolution to vote.

(iii)

If any amendment or amendments are carried, the Chairman shall put to vote the resolution incorporating the amendment or amendments which have been carried together.

(iv)

The Chairman may group together the amendments which are substantially the same.

(3)

The resolution with or without an amendment or amendments as finally carried under clause (2) shall be deemed to be the decision of the Board.

14.

Manner of taking votes.

(1)

The votes shall be taken by raising of hands, but if the majority of the members present so decide, the votes shall be taken by ballot.

(2)

Any member present at a meeting may refrain from voting, if he so chooses.

(3)

Every question to be voted shall be first put to vote for ascertaining the number of members who are in favour of the question and subsequently for ascertaining the number of members who are against the question.

15.

Procedure for leaving meeting.

- A member who wishes to leave the meeting before its closure shall, immediately before his leaving, intimate the same to the Chairman.

16.

Recording or signing of minutes of a meeting and maintenance of Minutes Book.

(1)

The decision arrived at in the meeting shall be recorded and complied with by the Chief Executive Officer in an appropriate manner.

(2)

The Chief Executive Officer shall keep and maintain minutes book which shall contain the names of the members and officers of the Board present at a meeting. The minutes shall be duly signed by the Chairman of such meeting and confirmed by the Board. Each page of the minute book compiled in the register shall be initiated or signed by the Chief Executive Officer in a top corner after it is confirmed. A copy of the confirmed minutes shall be sent to the Chairman, all members, the Government and any other authority concerned which the Chief Executive Officer may think fit within seven days after its confirmation. The minutes book shall be kept open to inspection at reasonable times to any member of the Board and the authorised representative of the State Government. The minutes book shall be kept in the safe custody of the Chief Executive Officer.

17.

Confirmation of minutes of previous meeting.

- The minutes of the proceedings of the previous meeting previously circulated shall be taken as read unless the majority of the members present request that such minutes be read before it is confirmed by the Board.

18.

Corrections of errors in the minutes.

- If any member present draws the attention of the Chairman of the previous meetings to any portion of the minutes of the proceedings of the previous meeting as being erroneously entered in the minutes, such amendment as the Chairman deemed proper shall be made before the minutes are confirmed by the Board.

Chapter III

Meetings of the Committee Constituted Under Section 11(1) of the Act

19.

Chairman of the committee and notice of meeting of the committees.

- The Chairman of a committee appointed by the Board shall be the convenor of the meeting of such committee. Three clear days notice of an ordinary meeting and one days notice of a special meeting shall be given to all the members of the committee.

20.

Manner of service of notice.

- The manner of service of notice of meeting of the committee shall be the same as that for the meeting of the Board.

21.

Transaction of business of meeting.

- No business shall be transacted at any meeting of the committee unless all the members of the committee are present.

22.

Rules of procedure.

- The procedure for the meeting of the Board shall apply mutatis mutandis to the meeting of the committee.

23.

Record.

- A written record of proceedings of every meeting of the committee shall be kept and maintained by the Chief Executive Officer.

24.

Proceedings of meeting to be signed.

- All the members of the committee shall affix their signatures on the record of the proceedings of the meeting of the committee.

25.

Proceedings of the committee to be placed before the Board and the Government.

- The proceedings of every meeting of the committee shall be placed before the Board at its next meeting and also to the Government thereafter.

26.

Date, time and place of the meeting.

- The meetings of the committee shall normally be held at the Head Office of the Board unless the members of the committee unanimously decide to meet elsewhere. The committee shall meet on such date and at such time as may be unanimously decided by the members of the committee.

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